

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name _____ Case No. _____
Street Address _____ Judge _____
City, State and Zip Code _____ Magistrate _____

Plaintiff

vs.

Name _____
Street Address _____
City, State and Zip Code _____

Defendant

**WARNING: This form is not a substitute for the benefit of the advice of legal counsel.
It is highly recommended that you consult an attorney.**

Instructions: After a Complaint has been filed, this form is used by a Defendant to request a divorce if you and your spouse have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities, and/or a party is pregnant. A Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form - Affidavit 3) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COUNTERCLAIM FOR DIVORCE WITH CHILDREN

Now comes Defendant and states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation.
2. Plaintiff alleged proper jurisdiction and venue.

3. Plaintiff and Defendant were married on _____ (date of marriage)
in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. *Check all that apply:* (If more space is needed, add additional pages)

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	Date of Birth
_____	_____
_____	_____
_____	_____
_____	_____

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	Date of Birth
_____	_____
_____	_____
_____	_____
_____	_____

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	Date of Birth
_____	_____
_____	_____

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court:

Name of Child	Date of Birth
_____	_____
_____	_____

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	Date of Birth
_____	_____
_____	_____

6. Military Service:

- ☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Defendant is entitled to a divorce from Plaintiff based upon the following grounds: *(check all that apply)*
- ☐ Plaintiff and Defendant are incompatible.
 - ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
 - ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
 - ☐ Plaintiff has been willfully absent for one (1) year.
 - ☐ Plaintiff is guilty of adultery.
 - ☐ Plaintiff is guilty of extreme cruelty.
 - ☐ Plaintiff is guilty of fraudulent contract.
 - ☐ Plaintiff is guilty of gross neglect of duty.
 - ☐ Plaintiff is guilty of habitual drunkenness.
 - ☐ Plaintiff is imprisoned in a state or federal correctional institution at the time of filing the Complaint.
 - ☐ Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.

8. Plaintiff and Defendant are owners of real estate and/or personal property.

Defendant requests that a divorce be granted from Plaintiff. Defendant further requests that the Court determine an equitable division of property and debts and order the following: *(check all that apply)*

- ☐ Plaintiff be designated the residential parent and legal custodian of the following minor child(ren):
_____;
 - ☐ Defendant be designated the residential parent and legal custodian of the following minor child(ren):
_____;
 - ☐ the non-residential parent be granted specific parenting time;
 - ☐ Plaintiff and Defendant be granted shared parenting of the following minor child(ren):
_____ pursuant to a Shared Parenting Plan (Uniform Domestic Relations Form 20), which Defendant will prepare and file with the Court;
 - ☐ Plaintiff pay child support, cash medical support, and health care expenses;
 - ☐ Plaintiff pay spousal support;
 - ☐ Defendant be restored to the former name of _____;
 - ☐ Plaintiff pay Defendant's attorney fees;
 - ☐ Plaintiff pay the court costs of the proceeding;
- and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City, State, Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(Check the boxes that apply)

Defendant delivered a copy of the Counterclaim for Divorce with Children.

On: (Date) _____, 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

At: (Print address or fax number) _____

- By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
 - ☐ Regular U.S. Mail
 - ☐ Fax
 - ☐ Hand Delivery
 - ☐ Other: _____

Signature